# STATE OF ILLINOIS
# CONTRACT AMENDMENT

The undersigned Agency and Vendor, Deloitte Consulting LLP (the Parties) agree that the following shall amend the Contract referenced herein. All terms and conditions set forth in the original Contract, not amended herein, shall remain in full force and effect as written. In the event of conflict, the terms of this Amendment shall prevail.

IN WITNESS WHEREOF, the Agency and the Vendor cause this Amendment to be executed on the dates shown below by representatives authorized to bind the respective PARTIES.

**VENDOR**

| | |
|---|---|
| Vendor Name: Deloitte Consulting LLP | Address: 111 S. Wacker Chicago, IL 60606 |
| Signature: | Phone: 312-486-4483 |
| Printed Name: Allan Kagan | Fax: 312-247-4483 |
| Title: Principal | Email: akagan@deloitte.com |
| Date: December 21, 2021 | |

**STATE OF ILLINOIS**

| | |
|---|---|
| Procuring Agency: Department of Employment Security | Phone: |
| Street Address: 33 S. State Street | Fax: |
| City, State ZIP: Chicago, IL 60603 | |
| Official Signature: | Date: 1/4/2022 |
| Printed Name: Kristin A. Richards | |
| Official's Title: Acting Director | |
| Legal Signature: | Date: |
| Legal Printed Name: | |
| Legal's Title: | |
| Fiscal Signature: | Date: |
| Fiscal's Printed Name: | |
| Fiscal's Title: | |

**STATE USE ONLY** **NOT PART OF CONTRACTUAL PROVISIONS**

PBC# N/A Project Title uFACTS System (PUA System)

Contract # 4100127387 Procurement Method (IFB, RFP, Small, etc): Covid 19 Exempt

IPB Ref. # N/A IPB Publication Date: N/A Award Code: Z

Subcontractor Utilization? ☐ Yes ☐ No ☑ Subcontractor Disclosure? ☐ Yes ☐ No ☑

Funding Source Obligation # 4100127387

CPO 33 – General Counsel Approval:

Signature Printed Name Date

1. **CONTRACT DESCRIPTION** (including Original Purchase Order or Contract Number): 4100127387 for the Unemployment Framework for Automated Claim & Tax Services (uFACTS) system.

2. **CHANGE ORDER**: Is this amendment a change order as defined in 30 ILCS 500/1-15.12 and 720 ILCS 5/33E?

☐ Yes ☒ No

3. **DESCRIPTION OF AMENDMENT** (Check all that apply, complete blanks and explain as necessary):

**3.1.** The completion date will be ☒ extended, ☐ shortened or ☐ remain the same.

3.1.1. Original completion date (as revised under the 5th Amendment): 12/31/2021.

3.1.2. Revised completion date: 12/31/2022.

**3.2.** The method of determining compensation (e.g., hourly rate, fixed fee, etc.) will ☒ stay the same or ☐ change as follows:

**3.3.** The cost will be ☒ increased, ☐ decreased or ☐ remain the same.

3.3.1. Cost History:

| | |
|---|---|
| Original cost: | $9,490,000.00 |
| 1st Amendment/Increase: | $325,000.00 |
| 2nd Amendment/Increase: | $4,550,000.00 |
| 3rd Amendment/Increase: | No cost increase |
| 4th Amendment/Increase: | $6,377,000.00 |
| 5th Amendment/Increase: | $1,692,998.00 |
| 6th Amendment/Increase: | $6,847,774.00 |
| Revised Total: | $29,282,772.00 |

3.3.2. Amount of change: $6,847,774.00

3.3.3. Revised cost: $29,282,772.00

**3.4.** The supplies or services to be provided will ☐ stay the same or ☒ be changed as follows: The Vendor shall provide the supplies and services identified in Attachment A, which is attached hereto and incorporated into this 6th Amendment by reference.

**3.5.** Subcontractors are being ☐ added, ☐ deleted, or ☒ remain the same?

3.5.1. All contracts with the subcontractors identified above must include the Standard Certifications and Financial Disclosures and Conflicts of Interest completed and signed by the subcontractor.

3.5.2. If the annual value of any of the subcontracts is more than $50,000, then the Vendor must provide to the State the Financial Disclosures and Conflicts of Interest for that subcontractor.



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3.5.3. **If the subcontractor is registered in the Illinois Procurement Gateway (IPG) and the Vendor is using the subcontractor's Standard Certifications or Financial Disclosures and Conflicts of Interest from the IPG, then the Vendor must also provide a completed Forms B for the subcontractor.**

3.5.4. **If at any time during the term of the Contract, Vendor adds or changes any subcontractors, Vendor will be required to promptly notify, in writing, the State Purchasing Officer or the Chief Procurement Officer of the names and addresses and the expected amount of money that each new or replaced subcontractor will receive pursuant to the Contract. Any subcontracts entered into prior to award of the Contract are done at the Vendor's and subcontractor's risk.**

**4. EFFECTIVE DATE OF AMENDMENT**: January 1, 2022.



**COVID-19 PROTECTIONS:** In response to the COVID-19 pandemic, Governor J.B. Pritzker issued Executive Order 2021-22 and 2021-23. These Executive Orders mandate certain contractors shall use face coverings, have COVID-19 vaccinations, or undergo testing for COVID-19 when in indoor public places, Health Care Facilities, Schools, Institutions of Higher Education, and State-owned and operated congregate facilities. Vendor shall adhere to the requirements of these Executive Orders as applied by the Agency. The Agency may also implement vaccination or testing requirements that exceed those in the Executive Orders.

# STATE OF ILLINOIS
# TAXPAYER IDENTIFICATION NUMBER

I certify that:

The number shown on this form is my correct taxpayer identification number (or I am waiting for a number to be issued to me), and

I am not subject to backup withholding because: (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified me that I am no longer subject to backup withholding, and

I am a U.S. person (including a U.S. resident alien).

- If you are an individual, enter your name and SSN as it appears on your Social Security Card.
- If you are a sole proprietor, enter the owner's name on the name line followed by the name of the business and the owner's SSN or EIN.
- If you are a single-member LLC that is disregarded as an entity separate from its owner, enter the owner's name on the name line and the D/B/A on the business name line and enter the owner's SSN or EIN.
- If the LLC is a corporation or partnership, enter the entity's business name and EIN and for corporations, attach IRS acceptance letter (CP261 or CP277).
- For all other entities, enter the name of the entity as used to apply for the entity's EIN and the EIN.

Name: Allan Kagan

Business Name: Deloitte Consulting LLP

Taxpayer Identification Number:

Social Security Number: Click here to enter text.

or

Employer Identification Number : 06-1454513

Legal Status (check one):

| | |
|---|---|
| ☐ Individual | ☐ Governmental |
| ☐ Sole Proprietor | ☐ Nonresident alien |
| ☐ Partnership | ☐ Estate or trust |
| ☐ Legal Services Corporation | ☐ Pharmacy (Non-Corp.) |
| ☐ Tax-exempt | ☐ Pharmacy/Funeral Home/Cemetery (Corp.) |
| ☐ Corporation providing or billing medical and/or health care services | ☒ Limited Liability Company (select applicable tax classification) |
| ☐ Corporation NOT providing or billing medical and/or health care services | ☐ C = corporation |
| | ☒ P = partnership |

Signature of Authorized Representative: _____

Date: December 21, 2021



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**ATTACHMENT A**
**Deloitte PUA Contract #4100127387**

Period of Amendment: January 1, 2022 thru December 31, 2022

No further system enhancements will be required after Yearly Bump is completed

- Yearly Bump (refers to programming PUA to pay claimants the annual cost of living WBA statutory provision as of January 1, 2021) estimated to be completed for identified population by 1/31/22
- Any changes to Design Document shared on 12/2/21, may result in additional costs
- After January Deloitte responsibilities will be:
  - Create, test, & execute DBCRS to address identified data issues
  - Run daily, weekly batches/scripts to continue to produce payments on daily basis
  - Create monthly/quarterly ETA reports
  - Create 1099
  - Create db scripts/reports to respond to ongoing data requests
  - Continue support of AWS Environment (monitoring, patching, issue resolution)

Team size to support M&O activities:

- 12 FTEs
- Required PUA database post 6/30 an Oracle upgrade must be completed by 6/1/22
  - Requires 2 months of development, regression testing
  - 5 additional FTEs to support
  - To be completed in Feb- March 2022

SOC Report: Deloitte will continue to provide a SOC1 report through the end of the contract, including all amendments, in the manner set forth in a prior amendment to this contract.

Costs:

- Monthly Staff Cost for M&O services only:
  - $339,160
- Two Month Staff Cost to Support Oracle Upgrade
  - $298,850
- Staff Cost for services to Complete Yearly Bump:
  - $328,990

AWS

- Through March 2022
  - Production: 6 Presentation Servers, 6 Application Servers, 8 Batch Servers
  - PERF1 & PERF2: 8 Presentation Servers, 8 Application Servers, 8 Batch Servers
  - Cost - $186,012 per month
- April – Dec
  - Production: 6 Presentation Servers, 6 Application Servers, 8 Batch Servers
  - PERF1: 4 Presentation Servers, 4 Application Servers, 4 Batch Servers
  - PERF2 – removed
  - Cost- $166,667 per month

Software

- Continued Software including 10 Data Cap licenses and HP Free Flow (merge correspondences for printing)
  - Cost $7,667 per month ($91,974 year)
- Experian which will be provided to IDES at no cost under the current business model. Experian will be invoiced at $ .38 for every transaction for any month with over 3,000 new claims.

**ATTACHMENT A**
**Deloitte PUA Contract #4100127387**

| | | | |
|---|---|---|---|
| Costs: | January | $861,800.00 | $861,800.00 |
| | Feb – March | $682,264.00 | $1,364,528.00 |
| | April – Sep | $513,494.00 | $3,080,964.00 |
| | Oct – Dec | $513,494.00 | $1,540,482.00 |
| | Extended | | $6,847,774.00 |